

Court No. - 37

Case :- WRIT - C No. - 49648 of 2009

Petitioner :- M/S. Parishudh Machines Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kr. Shukla, Amarendra Nath Singh

Hon'ble R.K. Agrawal, J.

Hon'ble Shashi Kant Gupta, J.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Pankaj Kumar Shukla, Advocate appearing for the respondents.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 11.8.09 passed by the respondent No. 2. Learned counsel for the petitioner submits that security is being asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 23rd June, 2009 in Writ Petition No. 30582 of 2009 (**M/s Vehlina Steels & Alloys Pvt. Ltd. and another Versus Paschimanchal Vidyut Vitran Nigam Ltd. and another**).

Learned counsel for the respondents submits that in several matters identical questions are involved.

List his writ petition along with other similar matters on 26th October, 2009. Learned Standing Counsel shall give a list of cases in which similar issues are related of the year 2009.

In view of interim order as already granted in writ petition No. 30582 of 2009 as referred above it is provided without prejudice to the right and contention of the parties that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 16.9.2009

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Court No. - 29

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kr. Shukla, Amarendra Nath Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vipin Sinha, J.

Learned counsel for the petitioner states that the writ petition has become infructuous.

The writ petition is, accordingly, dismissed as infructuous.

Order Date :- 12.9.2016

AKJ

(Vipin Sinha, J.)

(Tarun Agarwala, J.)